

J. Paul Kelleher, “Editor’s Preface,” in Richard W. Miller, *The Ethics of Social Democracy* (Oxford University Press, 2026)

At the time of his death in June 2023, Richard W. Miller was completing edits on this, his final book. *The Ethics of Social Democracy* offers a novel defense of arguably the most common domestic policy agenda in contemporary political philosophy. This agenda includes a strong commitment to civil and political liberties; an “anxious embrace of capitalism” as a means of coordinating the economy; and support for measures that improve people’s well-being through extensive taxation that would reduce the economic inequalities that attend unfettered capitalism. Further, the assistance these policies deliver is assistance both for those who are poor, and also for those who are not poor but who still face difficulties in accessing comprehensive medical care, advanced education, cultural enrichments, and invigorating recreation. As a label for this political program, Miller preferred “social democratic,” owing to regional (as well as academic) variations in the term “liberal,” the “presumptuousness” of the term “progressive,” and the “obsolete critiques of capitalism” evoked by the term “socialist.”<sup>1</sup>

In Miller’s ethical framework, social democracy is animated by the goal of promoting the general welfare, which in turn consists in the display of impartial concern for one’s fellow citizens. (I shall return shortly to Miller’s discussion of non-citizens.) But Miller’s argument for treating this goal as a guiding political norm is multifaceted. To be sure, the argument begins with the defense of a duty of impartial political concern. But this turns out to be a highly qualified duty that is also strongly circumscribed by other important duties, according to Miller. Thus instead of beginning and ending with an argument for promoting the general welfare, interpreted as the display of impartial political concern, Miller’s full argument “climbs a ladder to *vindication* of promotion of the general welfare as a norm that should guide political choice” (my emphasis).

The first rung in Miller’s ladder is the duty to show impartial political concern. This is a duty of “political helpfulness,” and Miller argues that it calls upon citizens to support both the creation of public goods that would benefit everybody and tax-financed aid from those who are better off and who could help others without running a significant risk of worsening one’s life. Assuming for the moment that a society embraces this duty of

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<sup>1</sup> Richard W. Miller, “Learning from Libertarianism: Thanks from an Unrepentant Social Democrat,” in Jason Brennan, Bas van der Vossen, and David Schmidtz (eds.), *The Routledge Handbook of Libertarianism* (New York: Routledge, 2018): 3–21; p. 3.

helpfulness, how should it be discharged? There will be many different levels of need across society, and no defensible concrete policy of help will involve helping everyone in precisely the same way and to precisely the same degree. To address this issue, Miller adapts John Rawls's construct of an "original position" in which an ethically illuminating decision is made behind "a veil of ignorance" that hides facts that one can access in the real world. For Rawls, choice in the original position illuminates the content of a complete conception of justice. For Miller, it illuminates only the ethical requirements of impartial concern. Central among these requirements, according to Miller, is the need to accord independent ethical relevance to three distinct factors: how badly off each prospective beneficiary is, how much one can help each beneficiary, and the absolute number of people one can help with each available policy of help. Choice behind Miller's "original position of impartial concern" is meant to clarify the upshot of these three factors working in concert. This is a central task of Chapter 1, which begins with an account of well-being that underwrites the required assumptions concerning neediness and the point of political helpfulness.

As noted above, Miller qualifies the duty of impartial political concern with the proviso that help is required only up to the point at which further displays would create significant risks of worsening the benefactor's life. This proviso threatens to undermine an ultimate political duty to promote the general welfare to the fullest possible extent. For a fully impartial display of political concern is inconsistent with the sort of partiality to self and to family whose suppression would worsen many people's lives. And indeed Miller believes that precisely this consideration imposes limits to the duties that emerge from the original position of impartial concern. But Miller adds a further qualification that enables him to add further rungs onto his ladder of justifications. As he puts it in Chapter 2, "A morally conscientious person's underlying disposition to help need not be so demanding that it imposes a significant risk of worsening his or her life *if* he or she fulfills all further responsibilities" (Miller's emphasis). The additional rungs involve these further responsibilities, which (Miller argues) together justify policies that would reduce economic inequality to the point where the outcome coincides with the outcome that is demanded by the goal of impartial political concern taken all by itself.

The other rungs—discussed in Chapters 3, 4, and 5, respectively—concern the avoidance of political domination (which requires mitigating inequalities in political power that attend economic hierarchy), the avoidance of exploitation (which requires reducing the neediness that makes exploitive commercial relationships possible), and the mitigation of unequal opportunity (which Miller likens to the control of a harmful side-effect of otherwise benign self-advancement). Miller explicitly characterizes only the first of these

rungs as a matter of “respect, not concern.” But arguably the same is true of the final two rungs as well.

Having climbed the ladder to a vindication of the domestic political norm of promoting the general welfare, Miller devotes his final chapter to various transnational issues, including the proper treatment of those seeking to migrate into “the fortunate circle of the home territories of social democracy.” Here too the argument begins with a duty of impartial political concern, yet once more this norm runs up against various ethical limits to social democratic helpfulness. But Miller has already distinguished mere helpfulness from the respectful mitigation of harm that one currently helps to impose upon others, and it is the latter that forms the principal ethical basis of transnational social democratic obligations. In this chapter Miller applies this broad lens to the nitty-gritty details of climate change policy, international trade and commerce, the origins and treatment of repressive foreign regimes, and domestic immigration policy.

While Miller does not stress it in the book, articles that were the book’s precursors make plain that one of his philosophical goals is to explain how a social democratic political program can be justified while respecting four important lessons from libertarian political philosophy.<sup>2</sup> These are:

1. *The limits of fairness.* Since the 1970s and 1980s, many broadly social democratic political philosophers have attempted to ground their political programs on principles of fairness. Rawls called his conception of justice “justice as fairness,” and so-called luck egalitarians condemned as unfair—and thus as pro tanto unjust—inequalities in outcomes that are due to brute luck rather than choices for which one may reasonably be held responsible. Miller agrees with libertarians that situations of undeserved inequality are not thereby pro tanto unjust. What makes a situation unjust is an objectionable failure to display morally conscientious degrees and modes of concern and respect for others with whom one stands in particular relationships.
2. *Justice has no pattern.* Much of contemporary political philosophy has sought to defend distributive principles that should guide redistributive public policy. Various candidate egalitarian principles have often taken center-stage. Libertarians

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<sup>2</sup> Ibid.; Richard W. Miller, “Learning from libertarianism: Thanks from an Unrepentant Social Democrat,” *WashingtonPost.com* (September 19, 2017), <https://www.washingtonpost.com/news/volokh-conspiracy/wp/2017/09/19/learning-from-libertarianism-thanks-from-an-unrepentant-social-democrat/>.

have criticized this enterprise, arguing that it is a mistake to view justice as requiring any particular pattern of distribution of advantages and disadvantages. While he ultimately disagrees with the libertarian view of justice as a whole, Miller wholeheartedly agrees with this plank of it. Indeed, one of the most novel arguments in *The Ethics of Social Democracy* is the rejection, in Chapter 5, of principles of equality of opportunity in life-prospects. Instead, argues Miller, the duty to reduce inequalities in opportunity is supported by “a need to mitigate imposed worsening that is exemplified in the morality of pollution.”

3. *Respecting self-reliance.* Many philosophical libertarians have argued for the ethical importance of a wide sphere of liberty within which an individual may pursue their life-plan free from outside interference by others. This reflects not only the importance of living a life that is one’s own, but also the importance in a good life of forming, pursuing, and finding some success in worthwhile goals. If one is debarred from enjoying such success simply because one makes use of undeserved advantages, then certain ethically permissible routes to self-advancement will be blocked. Miller believes that social democrats must find ways to respect this lesson in describing and implementing their decidedly non-libertarian political program. At the very least, when the ethics of social democracy requires policies that worsen the life-prospects of the best-off members of society, that worsening should be viewed as morally relevant costs in part because it interferes with the self-reliant pursuit of worthwhile goals that give point and value to the lives of those who are worsened.
4. *The value of cooperative commerce.* As noted above, a distinguishing feature of Miller’s conception of social democracy is its “anxious embrace of capitalism.” Yet this embrace is anxious not because it is merely instrumental—that is, not because it is a deal with the devil in exchange for all the material well-being capitalism can afford. Rather, it is anxious because of the ethically problematic political and commercial relationships that unfettered capitalism can enable. But these causes for anxiety can exist alongside certain distinctive virtues of capitalist commercial relationships, virtues that many libertarians extol and that a merely instrumental defense of capitalism will not acknowledge. According to Miller, when political domination and economic exploitation are held in check, capitalist commerce can be an intrinsically valuable relationship of mutual aid—of “exchanging help for help,” in Miller’s celebratory phrase. This is why Chapter 4 is titled, “Capitalist Exploitation: A Bourgeois Critique.” There, Miller defends the

value of non-exploitive relations of capitalist commerce and the lack of value in self-advancement that relies upon unequal bargaining power. As Miller puts it elsewhere, “In this way, learning a lesson from libertarianism helps in learning a lesson from Marxism, a lesson that yields criticisms of actual capitalism that are stalwartly bourgeois.”<sup>3</sup>

By all accounts Miller felt that the book’s manuscript was very near completion just prior to his death. But an author can justly feel this way even when there is still much to do by way of adding references to the existing literature or chasing down World Bank statistics. Sometimes I thought that a reference was in order, but I was unsure if Miller himself would have agreed. In such cases I left the manuscript as it was. In other cases, I was forced by ignorance to omit the inclusion of a clearly intended reference. I know readers will show grace if they encounter an uncited empirical claim (especially in the final chapter) or if they believe a philosophical interlocutor has not received the citation they deserve.

Finally, I would like to thank Miller’s daughter, Laura Miller, and Peter Ohlin at OUP for trusting me with this editorial role.

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<sup>3</sup> Miller, “Learning from Libertarianism: Thanks from an Unrepentant Social Democrat,” *op. cit.*, p. 12.